

24VECV02164 24VECV02164

County: los-angeles
Division: Civil Law and Motion
Department: O
Hearing date: 2026-08-10
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Case Number: 24VECV02164 Hearing Date: August 10, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

A SCHNEIDER,

Plaintiff,

vs.

STEVE H. HORNSTEIN, ESQ., CPA, CFP,
LL.M, FINANCIAL ADVISOR; HORNSTEIN LAW OFFICES; HORNSTEIN FINANCIAL; and DOES
1 through 75, Inclusive.

Defendants.

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CASE NO.: 24VECV02164

ORDER

GRANTING IN PART DEFENDANTS' MOTION TO STRIKE

I.

BACKGROUND

Plaintiff A Schneider

("Plaintiff") alleges Defendants Steve H. Hornstein, Esq., CPA, CFP, LL.M,
Financial Advisor ("Hornstein"), Hornstein Law Offices ("Hornstein Law"), and Hornstein
Financial (collectively,

"Defendants") were attorneys, CPAs, CFPs, or financial advisors who were
providing legal, financial, accounting, tax and professional services to
Plaintiff. Plaintiff alleges Defendants were negligent or committed malpractice
in the provision of their services to it. Defendants now move to strike
portions of the First Amended Complaint ("FAC").

II.

PROCEDURAL

HISTORY

On May 9,
2024, Plaintiff filed a Complaint alleging (1) Negligence.

On March 19,
2026, the Court sustained Defendants' demurrer to the Complaint with leave to amend.

On April 17,
2026, Plaintiff filed a FAC alleging (1) Legal Malpractice, (2) Professional Negligence, (3) Breach of Fiduciary Duty, (4) Negligent Misrepresentation, (5) Fraud, (6) Fraud – Concealment, (7) Accounting, and (8) Declaratory Relief.

On July 8,
2026, Defendants filed the instant Motion to Strike.

As of August 7,
2026, no opposition has been filed.

III.

LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See *id.* at § 436(b).) This provision is for “the striking of a pleading due to improprieties in its form, or in the procedures pursuant to which it was filed.” (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.) [1]

IV.

MEET AND CONFER

“Before

filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion to strike the amended pleading.” (Code Civ. Proc. § 435.5(a).)

Defendants’

counsel attests he was unable to reach Plaintiff by phone or mail. (See Declaration of Steve Hornstein filed July 8, 2026, ¶ 2.) The Court will address the merits of the Motion and expects the parties to meet and confer prior to filing future motions.

V.

ANALYSIS

Defendants move

to strike the FAC in its entirety on grounds that it does not comply with California Rules of Court, rules 2.108, 2.110, and 2.112.[2]

Defendants argue due to this noncompliance, Defendants are unable to clearly read and respond to specific allegations. (See Mot. at 4:1-2, 4:18-20.)

As an initial

matter, the Court will exercise its discretion to strike the third through eighth causes of action. When a demurrer is sustained with leave to amend, the leave must be construed as permission to the pleader to amend the causes of action to which the demurrer has been sustained, not add entirely new causes of action. (See *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) The Court previously sustained Defendants’ demurrer to Plaintiff’s Complaint, which only asserted a negligence cause of action. (See March 19, 2026, Order.) Plaintiff’s amended pleading improperly exceeds the scope of permissible amendment because its FAC adds seven new claims. However, the Court does not strike the first and second claims for legal malpractice and professional negligence because they are negligence claims based on the same set of facts asserted in Plaintiff’s Complaint. Thus, the Court will only strike the third through eighth causes of action.

Next, the

Court finds that Plaintiff's failure to comply with rules 2.108, 2.110, and 2.112 does not warrant striking the surviving claims because the FAC is otherwise organized and clear enough for Defendants to respond to it. Further, the first claim states it is asserted against all Defendants. Although the second claim states it is asserted against "CPA / Financial Advisor" the Court finds Defendants can reasonably infer it is asserted against all Defendants. (See FAC, ¶¶ 32-33.)

Thus, the

Court GRANTS IN PART Defendants' Motion to Strike the Third through Eighth Causes of Action WITHOUT LEAVE TO AMEND.

VI.

CONCLUSION

Based on the

foregoing, the Court GRANTS in part Defendants' Motion to Strike the Third through Eighth Causes of Action WITHOUT LEAVE TO AMEND.

Defendants

are ordered to file an Answer only by no later than August 21, 2026.

IT

IS SO ORDERED.

DATED: August 10, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.

[2] Rule 2.108 concerns line

spacing and numbering. Rule 2.110 concerns the location and contents of the footer. Rule 2.112 concerns the requirements for a cause of action.